

The Extent of a Compromise

Elizabeth Dylke

St#90602970

Aboriginal and Treaty Rights – LAW 353B

Professors Jackson/Aldridge

April 2005

As a person of the Western world, I have learned to be proud of the values that are inherent in my country. I have grown to appreciate the rights and freedoms that I am at liberty to demand as a Canadian citizen. And these rights and freedoms are enough for me. Each day I am content because I know that Canada's legal and social framework will provide me with ample opportunity to accomplish my goals. The society that surrounds me functions the way in which I would expect it to function; its happenings make sense to me; and in it, I am home.

I never stop and wonder what it would be like if suddenly my country became saturated with values that were foreign to me. I never expect that one day, the borders of Canada will ever be different from what I have always understood them to be. Never in my life have I been afraid that someone may purport to take away my freedom from discrimination; my right to vote; or my ability to gain a livelihood in the way that I know how. This is just my way of life – it is the only way of life I know.

I think it is only when I consider the plight of my country's First Nations people that I even realize how lucky this makes me. For, the very same things that have been unimaginable to me, to them, have been a reality. I have compiled this scrapbook in an attempt to visually represent this notion. That is, to demonstrate the western and indigenous perspectives that contemporaneously exist in Canada, and more specifically, the manner in which First Nations perspectives have been "covered up" by the perspectives of their colonizers.

The ongoing struggle in this country that has persisted between various Canadian governments and First Nations representatives has always been evident to me. I have always known that this struggle involves competing interests in land, natural resources,

and political authority. However, though exploring the personal accounts of First Nations people, I have been able to understand that fundamentally, this struggle is about much more than these things. It is concerned with a repossession of values, subjective standpoints, and the simple ability of First Nations people to *live* in a manner that makes sense to them. Viewing the struggle of Aboriginal people in this framework, sheds light on *the extent of what they have compromised*.

It is true that the Aboriginal people of this nation have compromised land. In the “Introduction” to Nisga’a: People of the Nass River, Frank Calder describes what his people know as traditional Nisga’a territory:

Our homeland – all 24, 862 square kilometers of it – straddles a spectacular route to Yukon and Alaska from Canada and northward to the glacier-fed lakes of Meziadin and Bowser. From the Skeena Mountains in the northeast to the intersection of the Alasa Panhandle and the BC Coast, this is Nisga land.¹

Clearly, the Nisga’a have compromised this notion, as their homeland is now narrowly defined under the “Meets and Bounds Description of Nisga’a Lands” in the Nisga’a Final Agreement.²

Redefining Aboriginal territory in Canada has been a significant concession made by First Nations people given the fact that there is no authority for their obligation to ever to concede at all. As Nisga’a spokesman David Mackay, states:

What we don't like about the Government is their saying this: "We will give you this much land." How can they give it when it is our own? We cannot understand it. They have never bought it from us or our forefathers. They have never fought and conquered our people and taken the land in that way, and yet they say now that they will give us so much land--our own land.³

¹ F. Calder, “Introduction” in *Nisga’a: People of the Nass River* (Vancouver: Douglas & McIntyre, 1993) 1.

² *Nisga Final Agreement*, Canada, British Columbia and Nisga’a Nation, 19 October 1999, online: [http://www.gov.bc.ca/tno/negotiation/nisgaa/docs/all_of_a_241.htm#AppendixA-](http://www.gov.bc.ca/tno/negotiation/nisgaa/docs/all_of_a_241.htm#AppendixA-3:MetesandBoundsDescription)

3:MetesandBoundsDescription

³ *Calder v. British Columbia (Attorney-General)* [1973] S.C.R. 313 at 9.

However, an examination of a First Nations standpoint indicates that the physical bounds of land are not all that have been compromised. Through treaty negotiations, Canada's Aboriginal people have been compelled to compromise their very definition of a "nation". Aboriginal author, Oren Lyons states:

My people say...We are a nation and always have been a nation.' For the Indian nations there is no United States and Canada. We have never recognized the border...We have Six Nations people in both countries, and we say that the border is above our head. We walk back and forth below it. That line does not involve us.⁴

It is also clear that through colonization, Aboriginal people have been forced to compromise their traditional share in Canada's natural resources. However, what is not so apparent is the significance of such a compromise. Despite the fact that the Canadian Department of Fisheries and Oceans has a mandate to "integrate...social perspectives"⁵ in regulating Canada's freshwater resources, Oren Lyons describes the foreign nature of such regulation in the eyes of his people:

You wouldn't see 'No Hunting', 'No Fishing' or 'No Trespassing' signs in our territories. To a native person such signs would have been equivalent to saying 'No Breathing' because the air is somebody's private property.⁶

Furthermore, as David Mackay indicates, sacrificing access to natural resources requires Aboriginal people to sacrifice their means of life:

We have always got our living from the land; we are not like white people who live in towns and have their stores and other business, getting their living in that way, but we have always depended on the land for our food and clothes; we get our salmon berries, and furs from the land.⁷

⁴ O Lyons, "Spirituality, Equality, and Natural Law" in L. Little Bear, M. Boldt & J. Anthony Long eds., *Pathways to Self-Determination: Canadian Indians and the Canadian State* (Toronto: University of Toronto Press, 1984) 5 at 9.

⁵ *Our Mandate: Fisheries and Oceans Canada*, online: Fisheries and Oceans Canada < http://www.dfo-mpo.gc.ca/dfo-mpo/vision_e.htm > (last modified: 25 January 2005)

⁶ O. Lyons, "Spirituality, Equality, and Natural Law" in L. Little Bear, M. Boldt & J. Anthony Long eds., *Pathways to Self-Determination: Canadian Indians and the Canadian State* (Toronto: University of Toronto Press, 1984) 5 at 9.

⁷ *Calder v. British Columbia (Attorney-General)* [1973] S.C.R. 313 at 9.

Perhaps one of the most significant concessions that has been imposed upon Canada's First Nations people, is the suppression of their right to self-government. Through a process of colonization, the Canadian government has imposed itself in the management of Aboriginal undertakings. Currently, the Department of Indian Affairs has a mandate to "...support First Nations and Inuit in developing healthy, sustainable communities and in achieving their economic and social aspirations."⁸ However, certain representatives of the Nisga'a Tribal Council see an absurdity in its very existence:

It is not in our mind whatsoever that the Indian government has anything to do with the Department of Indian Affairs. To us those ideas are all as if they came from the farthest planet in the universe.⁹

The significance of the Aboriginal quest for self-determination is poignantly apparent when First Nations governmental values are examined in contrast to the current system of government in Canada. First Nations author, Tom Porter comments on this disparity:

So when you say 'Indian government' to the Iroquois, Mohawks, Onedias, Onandagas, Cayugas, or Senecas, we think about the Creator's law, not parliamentary procedure. We don't associate it with the prime minister or the president. There is no room in Indian government for people who seek power, fame and notoriety.¹⁰

According to First Nations representatives, within Aboriginal systems of government, "authority [is] a collective right" and "...responsibility always remain[s] with the

⁸ *Mandate, Roles and Responsibilities: Indian and Northern Affairs Canada* online: Indian and Northern Affairs Canada <http://www.ainc-inac.gc.ca/index_e.html> (last modified: 23 April 2004)

⁹ Nisga'a Tribal Council, *Nisga'a: People of the Nass River* (Vancouver: Douglas & McIntyre, 1993) 15.

¹⁰ T. Porter "Traditions of the Constitution of the Six Nations" in L. Little Bear, M. Boldt & J. Anthony Long eds., *Pathways to Self-Determination: Canadian Indians and the Canadian State* (Toronto: University of Toronto Press, 1984) 14 at 21.

people.”¹¹ Tom Porter states in addition, that his people seek spiritual guidance in the laws of the Creator, rather than in governmentally legislated sources:

We are talking about the nationhood that God gave us, nothing else, because we are the indigenous natural people....the Creator gave us our own Constitution over one thousand years ago. When Indian leaders seek Indian Government, they take the guidance of the Creator.¹²

It is evident from the expression of these principles that the current system of government in Canada simply does not have room for the realization of Aboriginal values. The inability of First Nations people to govern themselves has amounted not only to a compromise of political power but more importantly, to a compromise of identity.

A most devastating aspect of the Aboriginal struggle to repossess this identity is inherent in the fact that First Nations groups have been forced to fight for what they have lost *within* the system of colonization that has caused them to endeavor such losses – and more significantly, within a system that does not understand them. In order to regain their own rights and freedoms, First Nations people in Canada have been compelled to frame their arguments in a manner that makes legal sense to a western-based judiciary. Often times, this task has proven to be unachievable given the disparity of western and indigenous perspectives already discussed. An example of such difficulty is evident in the trial judgement of *Delgamuukw v. British Columbia*¹³, in which B.C. Chief Justice McEachern wrote:

¹¹M. Smallface Marule, “Tradition Indian Government: Of the People, by the People, for the People.” in L. Little Bear, M. Boldt & J. Anthony Long eds., *Pathways to Self-Determination: Canadian Indians and the Canadian State* (Toronto: University of Toronto Press, 1984) 36 at 37.

¹²T. Porter “Traditions of the Constitution of the Six Nations” in L. Little Bear, M. Boldt & J. Anthony Long eds., *Pathways to Self-Determination: Canadian Indians and the Canadian State* (Toronto: University of Toronto Press, 1984) 14 at 21.

¹³*Delgamuukw v. British Columbia*, [1991] B.C.J. No. 525.

The evidence does not disclose the beginnings of the Gitksan and Wet'suwet'en people. Many of them believe God gave this land to them at the beginning of time. While I have every respect for their beliefs, there is no evidence to support such a theory and much good reason to doubt it.¹⁴

Preconceived notions such as the one represented here, permeate all aspects of Canadian society and pose daunting obstacles within the First Nations struggle for redress.

As Canadians, we are encouraged to be proud of the principles that pave the foundation of our society. Notions such as individual liberty, the right to mobility and livelihood¹⁵, equality¹⁶, democratic rights and rule – are viewed by the majority of people, as ideal values upon which to structure a nation. From a western perspective, such values are not only sufficient, but also right. However, it is clear from the various Aboriginal perceptions highlighted, that these ideals are not sufficient for all the people that living in this country. Aboriginal conceptions of collective authority, borderless nations and respect for the spiritual value of all natural creatures,¹⁷ have not been sufficiently integrated into the structure of Canadian society. What I hope to portray through the images in this scrapbook, is the true subjective nature of “Canadian” values and the extreme sacrifices that Canada’s Aboriginal people have undertaken to live among them.

¹⁴ *Delgamuukw v. British Columbia*, [1991] B.C.J. No. 525 at 81.

¹⁵ *Charter of Rights and Freedoms*, R.S.C. 1982, c. 11, s. 6.

¹⁶ *Charter of Rights and Freedoms*, R.S.C. 1982, c. 11, s. 15.

¹⁷ Gitksan and Wet'suwet'en Hereditary Chiefs, *The Spirit in the Land* (Gabriola: Reflections, 1992) at 23.